

U.O.Note No.266/SC.D/94-2, Genl.Admn. (SC.D) Dept., dt.18.03.1994: Vigilance Commission to tender advice on A.C.B. reports.

Subject Heading : Vigilance Commission - no need to discuss, where advice on ACB report is in deviation with recommendation

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1. U.O.Note No.310/SC.D/91-1, G.A.(SC.D) Dept.,dt.26.03.91.
 2. G.O.Ms.No.368, G.A.(SC.D) Dept., dt.29.06.93.
 3. From the D.G., A.C.B., Lr.C.No.35/RCT.TCT/92, dt.16.02.94.

The attention of the Departments of Secretariat is invited to the reference 1st cited, wherein instructions were issued to the effect that whenever it is proposed to differ from the recommendations of the Anti-Corruption Bureau by the Departments of Secretariat, the matter should be first discussed in interdepartmental meeting at appropriate level with the representative of the Anti-Corruption Bureau before taking final decision by obtaining orders in circulation to Chief Minister.

2. The above procedure has been reviewed in view of the revival of Andhra Pradesh Vigilance Commission in the G.O.2nd cited. The Vigilance Commission is an apex organisation in so far as the vigilance against corruption in the Government Services is concerned. The Anti-Corruption Bureau is the investigating wing of the Vigilance Commission. On receipt of the reports from the Anti-Corruption Bureau, the Vigilance Commissioner, after weighing the entire evidence and the records advises the Departments concerned as to the penalty to be imposed on the accused or delinquent officers. As such, the present practice of conducting inter-departmental meeting with the representative of the Anti-Corruption Bureau when there is deviation from the recommendation of the A.C.B. is dispensed with.

3. There is also no need for the Vigilance Commissioner to discuss with the Officials of the Anti- Corruption Bureau whenever his advice is in deviation from the recommendation of the Anti- Corruption Bureau.

4. The instructions issued in the reference 1st cited, may be treated as withdrawn.